



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

NOV 22 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10835
(SECOND REVISION)

EXPIRATION DATE: October 31, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109.)

1. GRANTEE: Equilon Enterprises, LLC (formerly Shell Oil Company) Houston, Texas
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of Class 3 liquids in three non-DOT specification cargo tanks, described as 1100 gallon calibration tanks, mounted on a truck body. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172 Subpart C (Shipping Papers); and §§ 173.242(b) and 173.243(b) in that non-DOT specification cargo tank motor vehicles are not authorized packagings.
5. BASIS: This exemption is based on the application of Equilon Enterprises, LLC (formerly Shell Oil Company) dated September 28, 1999, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper shipping name-- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Fuel, aviation, turbine engine	3	UN1863	I, II, III
Gasoline	3	UN1203	II
Kerosene	3	UN1223	III
Petroleum distillates, n.o.s.	3	UN1268	I, II, III

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - The packaging authorized is a group of three non-DOT specification 1100 gallon cargo tanks (calibration tanks) mounted on a truck body. The three cargo tanks were manufactured by Weld-It Company of Los Angeles, CA. The cargo tanks conform to the DOT MC-306 Specification except that no overturn protection was provided. The maximum pressure during transportation must be less than 2 psig. Pressure relief devices are not required.

b. TESTING - Each cargo tank must be visually inspected and pressure tested as required by § 180.407(c) for MC-306 Specification cargo tanks.

c. OPERATIONAL CONTROLS -

(1) The bumper for the vehicle must meet the requirements of § 178.340-8(b) and § 393.86.

(2) Cargo tanks must be drained of all liquid prior to transportation. Only vapors of petroleum distillates and residue liquids at a pressure of less than 2 psig are authorized as lading in transportation.

d. MARKING - The cargo tank motor vehicle covered by this exemption must be plainly marked on both sides, in letters at least two inches high on a contrasting background, "DOT-E 10835." The marking requirement of § 172.203(a) is waived.

8. SPECIAL PROVISIONS: Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

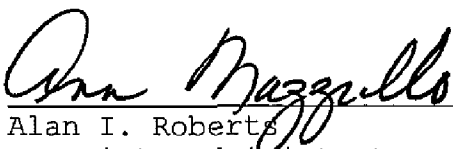
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 22 1999

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

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